



Gibraltar Maritime Administration

HM Government of Gibraltar

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Maritime Labour Notice (MLN) – 042

MLC 2022 Amendments entering into force on 23 December 2024

To: Ship Owners, Operators, Masters, Officers, and Recognised Organisations

This MLN provides guidance on compliance with the 2022 amendments to MLC coming into force on 23 December 2024. Implementation of these guidelines will be taken as evidence of compliance with the Gibraltar regulations.

The guidelines do not preclude the ship-owner from demonstrating an equivalent or higher standard as an “alternative method” of evidence of compliance.

References:

- *Maritime Labour Convention 2006 (MLC)*
- *Gibraltar Merchant Shipping (Maritime Labour Convention) Regulations 2013*
- *Gibraltar Merchant Shipping (Maritime Labour Convention) (Amendment) Regulations 2024*

1. Introduction

- 1.1. Amendments to the Maritime Labour Convention (MLC) 2006 were adopted at the International Labour Organisation’s conference, 110th session held in Geneva on 06 June 2022. These amendments are herein referred to as the 2022 Amendments.
- 1.2. The 2022 Amendments have been adopted into the Gibraltar Merchant Shipping (Maritime Labour Convention) Regulations 2013 via the Gibraltar Merchant Shipping (Maritime Labour Convention) (Amendment) Regulations 2024.

2. Application

- 2.1. All Gibraltar registered vessels subject to MLC compliance must have appropriate measures in place to demonstrate compliance with the 2022 Amendments as from the effective date of 23 December 2024.

3. Maritime Labour Certificates & Maritime Labour Declarations (DMLC) Part 1 & 2

- 3.1. The 2022 Amendments do not immediately affect the validity of MLC Certificates, or DMLC Part II issued/approved in respect of Gibraltar registered vessels prior to 23 December 2024. Existing MLC certificates and approved DMLC Part II shall remain valid until first periodical inspection after 23 December 2024.

- 3.2. At the first periodical MLC inspection mentioned above, the shipowner must ensure that a revised DMLC Part II incorporating the additional measures for compliance with the 2022 Amendments is available for review and approval by the Administration. Subject to the aforementioned approval, the MLC Certificate will be issued (or re-issued if applicable to an Intermediate inspection).
- 3.3. Notwithstanding the above, MLC shipowners may irrespective of the periodical MLC inspections stated in 3.1 above, request a revised DMLC Part I to be issued by the Gibraltar Maritime Administration. Any such requests must be accompanied by a revised DMLC Part II incorporating the additional measures for compliance with the 2022 Amendments. Subject to approval of the revised DMLC Part II by the Administration, a revised DMLC Part I, and revised MLC Certificate will be issued for the applicable vessel.

Steve Gomez – Chief Surveyor

For & on behalf of the Maritime Administrator

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